

ARTICLE III. TRANSPORTATION IMPACT FEES

Section 87-40. Definitions applicable to Transportation Impact Fees. In addition to the general definitions contained in Section 87-2 hereof, the following terms shall have the following meanings as used in this Article:

“Access Improvements” shall mean improvements designed and constructed to provide safe and adequate ingress and egress from a Capital Facilities Impact Construction, which include, but are not limited to, rights-of-way, easements, paving, turn lanes, deceleration and acceleration lanes, traffic control devices, signage and markings, and drainage and utilities. Access Improvements shall not include improvements to the Major Transportation System occurring beyond the point(s) of connection for the Capital Facilities Impact Construction.

“Arterial Road” shall mean a road classified by the Florida Department of Transportation utilizing the definition established in Section 334.03(1), Florida Statutes, or its statutory successor in function. For the purposes of this Article an “Arterial Road” shall include those portions of an intersection with a Local Road that are a necessary and integral element of the design of the traffic flow on the Arterial Road.

“City Road System” shall mean the Arterial Roads and Collector Roads within the City that are not a part of the County Road System or State Highway System, plus associated bike lanes, sidewalks, transit facilities, and other multi-modal facilities for non-vehicular modes of transportation.

“Collector Road” shall mean a road classified by the Florida Department of Transportation utilizing the definition established in Section 334.03(4), Florida Statutes, or its statutory successor in function. For the purposes of this Article, a “Collector Road”

shall also include those portions of an intersection with a Local Road that are a necessary and integral element of the design of the traffic flow on the Collector Road.

“County Road System” shall mean the road system of Alachua County, Florida, as defined in Section 334.03(8), Florida Statutes, lying within the City, but excluding Local Roads and including associated bike lanes, sidewalks, transit facilities, and other multi-modal facilities for non-vehicular modes of transportation.

“External Trip” shall mean any vehicular trip which either has its origins from or its destination to the Capital Facilities Impact Construction and which impacts the Major Transportation System.

“Local Road” shall mean a road classified by the Florida Department of Transportation utilizing the definition established in Section 334.03(14), Florida Statutes, or its statutory successor in function.

“Major Transportation System” shall mean those roads and associated bike lanes, sidewalks, transit facilities, and other multi-modal facilities for non-vehicular modes of transportation that are within the City Road System, the County Road System, or the State Highway System.

“Off-Site Improvements” shall mean road improvements located outside of the boundaries of a Capital Facilities Impact Construction which are required by the City in order to serve External Trips, but not including Access Improvements.

“On-Site Improvements” shall mean road improvements located within the boundaries of a Capital Facilities Impact Construction which are required by the City to provide safe and adequate ingress and egress for the project, but not including Access Improvements.

“State Highway System” shall mean the road system of the State of Florida as defined in Section 334.03(24), Florida Statutes, lying within the City.

“Transportation Impact Fee” shall mean the Impact Fee imposed pursuant to this Article to fund growth necessitated capital improvements to the Major Transportation System.

“Transportation Impact Fee Study” shall mean the portion of the Impact Fee Study adopted in Section 87-5 relating to the Transportation Impact Fee.

“Trip” shall mean a one-way movement of vehicular travel from an origin (one trip end) to a destination (the other trip end). The word "Trip" shall have the meaning which it has in commonly accepted traffic engineering practice.

“Trip Generation” or “Trip Generator Rate” shall mean the maximum average daily trip generation rates at peak hour for the applicable trip generation land use category, as adjusted by the transportation Impact Fee Study.

“Trip Generation Land Use Category” shall mean the trip generation land use categories established in Trip Generation Manual, 11th Edition, as supplemented, published by the Institute of Transportation Engineers, or the most current edition thereof.

Section 87-41. Legislative Findings Applicable to Transportation Impact Fees. In addition to the general legislative findings contained in Section 87-4, the Commission hereby specifically ascertains, determines, and declares as follows:

A. Development necessitated by the growth contemplated in the Comprehensive Plan and the Transportation Impact Fee Study will require improvements and additions to the Major Transportation System to accommodate the traffic generated by such growth and maintain the standards of service adopted by the City.

B. There is a rational nexus between future growth, as represented by Capital Facilities Impact Construction, and the need to construct improvements and additions to the Major Transportation System to accommodate the traffic generated by such growth and maintain the standards of service currently provided by the Major Transportation System. The Transportation Impact Fees adopted herein for each Impact Fee Land Use Category are proportional to impact expected to be generated by the Capital Facilities Impact Construction.

C. The Commission has determined that ad valorem tax revenue and other revenues will not be sufficient to provide the capital improvements and additions to the Major Transportation System that are necessary to accommodate Capital Facilities Impact Construction occurring within the City.

D. The City has a responsibility to provide and maintain certain roads within the incorporated areas of the City that comprise the Major Transportation System. The Major Transportation System benefits all Capital Facilities Impact Construction occurring within the City, and, therefore, Transportation Impact Fees shall be imposed on Capital Facilities Impact Construction occurring in all incorporated areas of the City.

E. The required improvements and additions to the Major Transportation System needed to accommodate existing traffic at the level of service adopted by the City shall be financed by revenue sources of the City other than Transportation Impact Fees.

F. The Commission expressly finds that improvements and additions to the Major Transportation System provide a benefit to all Capital Facilities Impact Construction within the City in excess of the Transportation Impact Fee.

G. Implementation of the Transportation Impact Fee to require Capital Facilities Impact Construction to contribute its fair share of the cost of required capital improvements and additions to the Major Transportation System is an integral and vital element of the regulatory plan of growth management incorporated in the Comprehensive Plan of the City.

H. The purpose of this Article is to require payment of Transportation Impact Fees by those who engage in Capital Facilities Impact Construction and to provide for the funding of the cost of capital improvements and additions to the Major Transportation System that are required to accommodate such growth. This Article shall not be construed to permit the collection of Transportation Impact Fees in excess of the amount reasonably anticipated to offset the demand on the Major Transportation System generated by such Capital Facilities Impact Construction.

I. This Article shall not be construed to permit the expending or encumbering of any monies collected through Transportation Impact Fees for the construction of improvements or additions to roads that are not contained within the Major Transportation System.

J. The imposition of a Transportation Impact Fee is to provide a source of revenue to fund the construction or improvement of the Major Transportation System necessitated by growth as delineated in the capital improvement element of the Comprehensive Plan.

Section 87-42. Imposition of Transportation Impact Fees.

A. Effective on the dates indicated below, all Capital Facilities Impact Construction occurring within the incorporated area of the City shall pay the following

Transportation Impact Fee as a condition of issuance of a Building Permit for such Capital

Facilities Impact Construction:

ITE LUC	Land Use	Unit	Effective 11/27/2023	Effective 10/01/2024	Effective 10/01/2025	Effective 10/01/2026	Effective 10/01/2027
RESIDENTIAL:							
210	Single Family (Detached) <1,500 sf	du	\$3,005	\$3,506	\$4,006	\$4,507	\$5,008
	Single Family (Detached) 1,500 to 2,499 sf	du	\$3,379	\$3,942	\$4,505	\$5,068	\$5,631
	Single Family (Detached) 2,500 sf and greater	du	\$3,815	\$4,451	\$5,086	\$5,722	\$6,358
220	Multi-Family, 1-3 Stories	du	\$2,289	\$2,671	\$3,052	\$3,434	\$3,815
221/222	Multi-Family, 4 Stories or more	du	\$1,535	\$1,791	\$2,046	\$2,302	\$2,558
240	Mobile Home/RV Unit (Park Only)	du	\$1,250	\$1,458	\$1,666	\$1,875	\$2,083
LODGING:							
310	Hotel	room	\$1,502	\$1,753	\$2,003	\$2,254	\$2,504
320	Motel	room	\$724	\$844	\$965	\$1,085	\$1,206
RECREATION:							
430	Golf Course	hole	\$11,824	\$13,794	\$15,765	\$17,735	\$19,706
445	Movie Theater	1,000 sf	\$10,216	\$11,919	\$13,622	\$15,324	\$17,027
492	Health/Fitness Club	1,000 sf	\$10,865	\$12,676	\$14,487	\$16,298	\$18,109
INSTITUTIONS:							
520	Elementary School (Private)	student	\$384	\$448	\$512	\$576	\$640
522	Middle/Jr High School (Private)	student	\$359	\$419	\$479	\$539	\$599
525	High School (Private)	student	\$376	\$439	\$502	\$564	\$627
560	Church	1,000 sf	\$1,744	\$2,034	\$2,325	\$2,615	\$2,906
565	Day Care Center	1,000 sf	\$4,665	\$5,443	\$6,220	\$6,998	\$7,775
MEDICAL:							
610	Hospital	1,000 sf	\$3,630	\$4,235	\$4,840	\$5,445	\$6,050
620	Nursing Home	bed	\$448	\$522	\$597	\$671	\$746
OFFICE:							
710	General Office	1,000 sf	\$3,342	\$3,899	\$4,456	\$5,013	\$5,570
720	Medical Office 10,000 sq ft or less	1,000 sf	\$7,671	\$8,950	\$10,228	\$11,507	\$12,785
	Medical Office greater than 10,000 sq ft	1,000 sf	\$11,006	\$12,841	\$14,675	\$16,510	\$18,344
RETAIL:							
822	Retail/Shopping Center <40,000 sfgla	1,000 sfgla	\$2,416	\$2,818	\$3,221	\$3,623	\$4,026
821	Retail/Shopping Center 40,000 to 150,000 sfgla	1,000 sfgla	\$4,732	\$5,520	\$6,309	\$7,097	\$7,886
820	Retail/Shopping Center >150,000 sfgla	1,000 sfgla	\$4,987	\$5,818	\$6,649	\$7,480	\$8,311
840/841	New/Used Automobile Sales	1,000 sf	\$5,801	\$6,768	\$7,735	\$8,702	\$9,669

ITE LUC	Land Use	Unit	Effective 11/27/2023	Effective 10/01/2024	Effective 10/01/2025	Effective 10/01/2026	Effective 10/01/2027
849	Tire Superstore	bay	\$5,144	\$6,001	\$6,858	\$7,716	\$8,573
850	Supermarket	1,000 sf	\$6,992	\$8,158	\$9,323	\$10,489	\$11,654
862	Home Improvement Superstore	1,000 sf	\$2,927	\$3,415	\$3,903	\$4,391	\$4,879
880/881	Pharmacy with and w/out Drive-Thru	1,000 sf	\$4,394	\$5,127	\$5,859	\$6,592	\$7,324
890	Furniture Store	1,000 sf	\$1,348	\$1,573	\$1,798	\$2,022	\$2,247
SERVICE:							
912	Bank w/Drive-Thru	1,000 sf	\$7,507	\$8,758	\$10,010	\$11,261	\$12,512
931	Fine Dining/Quality Restaurant	1,000 sf	\$13,399	\$15,632	\$17,865	\$20,098	\$22,331
932	High-Turnover (Sit-Down) Restaurant	1,000 sf	\$14,996	\$17,496	\$19,995	\$22,495	\$24,994
934	Fast Food Restaurant w/Drive-Thru	1,000 sf	\$36,164	\$42,191	\$48,218	\$54,246	\$60,273
941	Quick Lubrication Vehicle Shop	bay	\$6,734	\$7,856	\$8,978	\$10,101	\$11,223
943	Automobile Parts and Service Center	1,000 sf	\$2,798	\$3,265	\$3,731	\$4,198	\$4,664
944	Gas Station w/Convenience Store <2,000 sq ft	fuel pos.	\$4,750	\$5,542	\$6,334	\$7,125	\$7,917
945	Gas Station w/Convenience Store 2,000 to 5,499 sq ft	fuel pos.	\$7,306	\$8,523	\$9,741	\$10,958	\$12,176
	Gas Station w/Convenience Store 5,500+ sq ft	fuel pos.	\$9,560	\$11,153	\$12,746	\$14,340	\$15,933
947	Self-Service Car Wash	stall	\$4,147	\$4,838	\$5,529	\$6,220	\$6,911
INDUSTRIAL:							
110	General Industrial	1,000 sf	\$1,501	\$1,751	\$2,001	\$2,251	\$2,501
140	Manufacturing	1,000 sf	\$1,466	\$1,711	\$1,955	\$2,200	\$2,444
150	Warehouse	1,000 sf	\$525	\$613	\$700	\$788	\$875
151	Mini-Warehouse	1,000 sf	\$304	\$354	\$405	\$455	\$506

B. The Transportation Impact Fee shall be paid in addition to all other Impact Fees and is intended to provide funds only for Off-Site Improvements. Access Improvements and On-site Improvements, including required right-of-way dedication, will be provided by the Applicant in accordance with the City's rules and regulations.

C. No Transportation Impact Fee shall be assessed upon the issuance of a commercial retail shopping center Building Permit, foundation permit, or a nonretail multiuse Building Permit for an unfinished Building; i.e., a Shell Permit. Instead, each individual use shall thereafter be assessed the applicable Transportation Impact Fee

based on the calculations set forth below upon subsequent issuance of a Building Permit to finish each unit. All Transportation Impact Fees for these shell Buildings will be collected no later than the issuance of a Building Permit for the finishing of the Building.

Section 87-43. Use of Transportation Impact Fees.

A. The Commission hereby establishes the “Transportation Impact Fee Trust Account.”

B. All Transportation Impact Fees shall be deposited into the Transportation Impact Fee Trust Account immediately upon receipt and such funds shall be maintained separate and apart from all other City accounts.

C. The monies deposited into the Transportation Impact Fee Trust Accounts shall be used solely for the purpose of providing growth-necessitated capital improvements to the Major Transportation System.

D. The monies deposited into the Transportation Impact Fee Trust Accounts shall be used solely for the purpose of providing capacity-expanding capital improvements and facilities to the Major Transportation System. Such improvements and facilities may include, but is not limited to:

1. Design and construction plan preparation;
2. Any permitting or application fees necessary for the construction;
3. Right-of-way acquisition, including any costs of acquisition or condemnation;
4. Construction of new through lanes;
5. Construction of new turn lanes;
6. Construction of new bridges;

7. Design and construction of new drainage facilities in conjunction with new roadway construction;
8. Purchase and installation of traffic signalization;
9. Construction of new curbs, medians and shoulders;
10. Relocating utilities to accommodate new roadway construction;
11. Construction management and inspection;
12. Surveying, soils and materials testing;
13. Repayment of monies transferred or borrowed from any budgetary fund of the City, which were used to fund any of the growth-necessitated improvements and additions to the Major Transportation System;
14. Actual costs related to the administration, collection and implementation of the respective Transportation Impact Fees;
15. Payment of principal and interest, necessary reserves and costs of issuance under any bonds or other indebtedness issued by the City to fund growth-necessitated improvements and additions to the Major Transportation System;
16. Fees for professional services, including but not limited to engineering, surveying, soils and materials testing, legal, appraisals and construction management;
17. Construction of new sidewalks, bikeways, transit facilities, trails and similar facilities along existing or new roads that are or will comprise a part of the Major Transportation System when part of a capital improvement project adding new capacity to the subject Transportation;

18. Funding provided to the state or county through a joint project agreement or other interlocal agreement for improvements to a facility within the Major Transportation System otherwise meeting the requirements of this section.

E. Funds on deposit in the Transportation Impact Fee Trust Accounts shall not be used for any expenditures that would be classified as maintenance or repair expenses.

F. Any funds on deposit that are not immediately necessary for expenditure shall be maintained in accordance with the City's investment policy. Any income derived from such investments shall be deposited in the applicable Transportation Impact Fee Trust Account and used as provided herein.

G. A report will be prepared annually by the City reflecting the collection and expenditures of the Transportation Impact Fees by the City during the previous year.